IN THE SUPREME COURT OF INDIA

CONSTITUTIONAL LAW & DIGITAL RIGHTS JURISDICTION

(Constitution Bench (9 Judges))

CASE NUMBER: Writ Petition (Civil) No. 494 of 2012 **CNR: SCIN010004942012**

REPORTABLE CITATION: (2017) 10 SCC 1 DATE: August 24, 2017

CORAM: 9-Judge Constitution Bench (per J.S. Khehar, C.J., J. Chelameswar, S.A. Bobde, R.K. A grawal, Rohinton Fali Nariman, A.M. Sapre, D.Y. Chandrachud, Sanjay Kishan Kaul, S. A

Justice K.S. Puttaswamy (Retd.) and Another v. Union of India and Others

Justice K.S. Puttaswamy (Retd.) ...PETITIONER(S)

VERSUS

Union of India and Others ...RESPONDENT(S)

HEADNOTE & STATUTORY PROVISIONS CONSIDERED

Acts: Constitution of India, Information Technology Act, 2000 | Sections: Article 21, Article 14, Article 19

Unanimous Nine-Judge Constitution Bench holding that the Right to Privacy is a fundamental right protected intrinsically under Article 21 and Part III of the Constitution. Every Indian citizen possesses an inherent fundamental right to privacy, shielding their bodily autonomy, personal choices, and digital data from unjustified surveillance.

RATIO DECIDENDI & BINDING LEGAL PRINCIPLE

The right to privacy is protected as an intrinsic part of the right to life and personal liberty under Article 21 and as a part of the freedoms guaranteed by Part III of the Constitution. Privacy has both positive and negative contents. Any encroachment by the State must satisfy the three-fold test of legality, legitimate state aim, and proportionality.

FINAL JUDICIAL DISPOSITION

DISPOSITION: Right to Privacy Affirmed as Fundamental Right (Outcome: Allowed)

Precedential Authority: Good Law (Unanimous 9-Judge Benchmark)

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